

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: June 9, 2025

ORDER OF: Mary A. HERVEY, *Administrative Law Judge*.

ORDER ON COMPLAINANT’S MOTION TO COMPEL DISCOVERY FROM RESPONDENT

This matter came before the undersigned on Complainant’s Motion to Compel Discovery from Respondent and supporting exhibits filed by PKDC, LLC (“Complainant” or “PKDC”) (Dkt. 29), and Respondent CMA CGM S.A.’s Opposition to Motion to Compel filed by CMA CGM S.A. (“Respondent” or “CMA”) on May 15, 2025 (Dkt. 30). For the reasons set forth below, the motion is granted in part and denied in part.

I. Background

On May 15, 2024, PKDC filed its verified complaint alleging that CMA violated 46 U.S.C. §§ 41102(c), 41104(a)(2), 41104(a)(9), and 41104(a)(10), and 46 CFR § 545.5. PKDC alleges these violations arose from a practice of systematically refusing to meet service commitments, requiring that extracontractual surcharges be paid prior to performance of service commitments, and assessing unreasonable demurrage and detention charges. (Complaint at Dkt. 1.) The complaint alleges, *inter alia*, that PKDC entered into a one-year service contract with CMA covering the 2021-2022 shipping year. (Complaint ¶ 16.) CMA moved to dismiss four of the five claims alleged in the complaint. By order served December 20, 2024, the motion was granted with respect to Count IV, the § 41104(a)(9) claim, but otherwise denied. (Order Partially Granting Motion to Dismiss at Dkt.15.) On December 20, 2024, CMA filed an answer denying the remaining claims and asserting affirmative defenses of failure to state a claim upon which relief can be granted, lack of subject matter jurisdiction, and estoppel. (Answer at Dkt. 16.)

II. Relevant Law

In Commission proceedings, parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense – including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter. 46 C.F.R. § 502.141(e)(1). For good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action. Relevant information need not be admissible at hearing if the discovery appears reasonably calculated to lead to the discovery of admissible evidence. *Id.*

On motion to compel discovery, the party from whom discovery is sought must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause. The presiding officer may specify conditions for the discovery. 46 C.F.R. § 502.141(e)(2)(i).

Discovery may be limited where it is unreasonably cumulative or duplicative, or where the burden or expense of the proposed discovery outweighs its likely benefit considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues. 46 C.F.R. §§ 502.141(e)(2)(A) and (C). Interrogatories are limited to 50, including all discrete subparts. 46 C.F.R. § 502.145(a). Objections to interrogatories must be stated with specificity. 46 C.F.R. § 502.145(b)(4).

A party may file a motion to compel answers to interrogatories or document requests, and the motion must include: a certification that the moving party has conferred in good faith in an effort to obtain compliance without the need for a motion, a copy of the disputed requests, a copy of any answer provided, the certificate of service that accompanied the discovery requests, and any supporting argument. 46 C.F.R. § 502.150(a)(2). Complainant's motion to compel satisfies these requirements. (Motion to Compel, Ex. A (certificate of consultation), Ex. B (document requests and interrogatories), Ex. C (response and reply), Ex. B (certificates of service), and supporting argument.)

III. Discussion

PKDC seeks an order compelling CMA to answer Interrogatory Nos. 20, 21, 26 and Document Request Nos. 21, 22, 44. PKDC's complaint alleges that CMA engaged in unjust and unreasonable practices related to receiving, handling, storing and delivering property pursuant to a service contract, provided service not in accordance with the rules and practices of a service contract, and unreasonably refused to deal or negotiate with complainant with respect to shipping under a service contract – all in order to profit from the rise in higher shipping rates than agreed to between the parties.

PKDC argues that the requested information and documents are relevant to these allegations, including: trends in contract and non-contract shipping prices before and during the relevant service contract to probe price trends; policies and practices related to space allocations and any changes in those policies; practices or enforcement of those policies and practices as shipping prices rose; specific breakdowns of cargo allocations on the trade lanes during the time covered by the service contract at issue; and specific documents concerning the course of conduct between Complainant and Respondent during the course of the service contract. (Motion at 1.)

PKDC argues that its discovery requests seek information related to CMA's allocation policies, practices and decisions, shipping rate trends, as well as information concerning denials of PKDC's requests for space under the service contract. (Motion at 2.)

PKDC argues that the disputed requests seek information related to the allegations in the complaint, including probing how CMA's policies and practices may have changed as shipping costs increased. This includes discovery related to trends in the total amount of cargo moved under service contracts versus other cargo and trends in contractual rates versus other rates. PKDC also seeks internal communications discussing the rejection of shipping requests made under service contracts for contract holders. PKDC argues that all information sought is highly relevant and necessary to an understanding of why CMA denied certain space and why and how it allocated space between contract and noncontract cargo as shipping costs rose and directly related to demonstrating the unreasonable patterns and practices alleged in the complaint. It further argues that while CMA does not believe average rates may be "meaningful," that is not for it to decide. PKDC contends that averages will show meaningful trends in rates and, while the averages themselves may not be admissible, they need not be. Rather all that is required is that the information sought is likely to lead to admissible evidence. (Motion at 10.)

PKDC states that CMA's responses and objections are inadequate, and that several disputes remain despite the parties' effort to resolve their dispute through negotiations in which many of the disputes were resolved. (*Id.* at 2-3.)

PKDC provided copies of the original discovery requests, CMA's responses, and each party's final position.

CMA argues that the material sought is not reasonably calculated to lead to the discovery of admissible evidence and/or the burden and expense of producing the information outweighs the benefit of production in light of the relevant factors enumerated in the Commission regulation quoted above, particularly the resources of the parties. CMA argues that in some instances the information sought or appropriate substitute information can be obtained through less burdensome means. (Opposition at 2.) CMA's arguments are supported by the Declaration of Pierre-Edouard Eouzan. (Eouzan Aff., attached to Opposition.)

Each of the disputed discovery requests is discussed below.

A. INTERROGATORIES

Interrogatory No. 20

Interrogatory No. 20 Original Request and Response:

Complainant's Interrogatory No. 20. State the average ocean freight rates charged by you to carry cargo under service contracts and the average ocean freight rates charged by You to carry cargo moving at spot market rates for service contract years 2019 to present.

Respondent's Response: CMA CGM objects to this interrogatory on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence.

CMA CGM further objects to the extent the interrogatory covers a time period that extends beyond that of the SC. CMA CGM further objects on the grounds

that this interrogatory seeks information beyond the geographic scope of the SC. CMA CGM further objects on the grounds that the interrogatory is overly broad and unduly burdensome.

Interrogatory No. 20 Discussions and Final Positions:

After a meet and confer letter and discussions, Complainant tried to address Respondent's objections as follows:

CMA requests that we restrict this request to relevant service contract lanes and contract year. We are amenable to limiting this request to the contract lanes but are not amenable to restricting to the contract year. As previously discussed, we would agree to limit to the 2019-2020 contract year through the 2022-2023 contract year.

CMA thereafter responded:

PKDC's proposed resolution is not acceptable. In addition to the burden of attempting to calculate manually the figures sought by this interrogatory, there are serious methodology problems associated with this request which, if answered as asked, would produce numbers that are meaningless and misleading.

PKDC thereafter tried a final time to procure a proper response by further limiting the request as follows:

CMA's time limitation is unacceptable. However, in a final good faith effort to resolve, we would be amenable to further limiting this request to the 2019-2020 contract year through the 2021-2022 contract year.

PKDC requests the Commission compel a response to Interrogatory 20 limited to the trade lanes covered by the relevant service contract and limited to contract years 2019-2020 through 2021-2022. (Motion at 4.)

CMA argues that the interrogatory is not reasonably calculated to lead to the discovery of admissible evidence because average rates are misleading and will not have probative value due to the variety of factors impacting ocean freight for both service contract and tariff (spot market) rates. These factors include refrigerated and hazardous cargo requiring special treatment, cargo volume, and customer support in the trade lanes. CMA argues that because the average rate would include commodities and/or routings that are not similar to those moved by other customers, the average would not provide meaningful information about the relationship between rates charged to PKDC and the rates charged to other customers. (Opposition at 2-3.)

CMA also argues that the interrogatory is unduly burdensome because the trade lanes covered by the service contract between the parties include the trade from China to the U.S. West Coast, during which time CMA provided no fewer than 12 weekly services and an eastbound

allocation from China of approximately 39,500 TEUs¹ per week. (Opposition at 3; Eouzan Aff. ¶¶ 4 and 5.) CMA states that in order to respond it would have to manually review the thousands of invoices issued each week for a year or more, determine which reflected contract rates and which reflected spot rates, add the freight rates in each category, and then divide the total by the number of containers moved in that category, and argues that this burden outweighs any benefit. (Opposition at 3-4; Eouzan Aff., ¶ 6.)

Citing FMC Fact Finding Report 29 Final Report at pp. 40-42, CMA argues that it is well established that cargo demand outstripped vessel capacity during the Covid-19 pandemic, resulting in increased freight rates. CMA argues that the freight indices that track market rate levels, including Xeneta, Drewry, Freightos, and the Shanghai Containerized Freight Index, could be used by PKDC in lieu of requiring CMA to provide this information.

The undersigned finds that the information sought could lead to the discovery of admissible evidence given that PKDC asserts a claim under § 41102(c) and seeks to determine how CMA's policies and procedures changed in relation to the increasing freight rates. At the same time, CMA persuasively argues that the average rate calculations sought are burdensome given the number of documents that need to be manually reviewed, which assertion is well supported by the Declaration of Pierre-Edouard Eouzan. CMA also persuasively argues that a good approximation for the average freight rate information sought can be found on indices that track market rate levels. For this reason, the interrogatory as originally drafted is unduly burdensome in light of the relevance of the information sought and is not proportional to the needs of the case absent a limitation to the scope of the request. Accordingly, the motion is **GRANTED IN PART and DENIED IN PART** with respect to Interrogatory No. 20. CMA is directed to respond to the interrogatory subject to the condition that its response be limited to the service contract trade lanes for the service contract years 2019 to 2020 and 2020 to 2021.

RULING: The motion to compel Interrogatory No. 20 is GRANTED IN PART and DENIED IN PART as specified herein.

Interrogatory No. 21

Interrogatory No. 21 Original Request and Response:

Complainant's Interrogatory No. 21. Identify Your average spot market rates for ocean freight for routes covered by the SC for service contract years 2019 to present.

Respondent's Response: CMA CGM objects to this interrogatory on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence in that rates vary by commodity and routing and an average freight rate has no probative value. CMA CGM further objects to the extent the interrogatory covers a time period that extends beyond that of the SC. CMA CGM further objects on the grounds that this interrogatory seeks information beyond the geographic scope of the SC. CMA CGM further objects on the grounds that the interrogatory is overly broad and unduly burdensome.

¹ TEU stands for Twenty-foot Equivalent Unit.

Interrogatory No. 21 Discussion and Final Positions:

After a meet and confer letter and discussions, Complainant tried to address Respondent's objections as follows:

CMA requests that we restrict this request to relevant service contract lanes and contract year. We are amenable to limiting this request to the contract lanes but are not amenable to restricting to the contract year. As previously discussed, we would agree to limit to the 2019-2020 contract year through the 2022-2023 contract year.

CMA thereafter responded:

PKDC's proposed resolution is not acceptable. In addition to the burden of attempting to calculate manually the figures sought by this interrogatory, there are serious methodology problems associated with this request which, if answered as asked, would produce numbers that are meaningless and misleading.

PKDC thereafter tried a final time to procure a proper response by further limiting the request as follows

CMA's time limitation is unacceptable. However, in a final good faith effort to resolve, we would be amenable to further limiting this request to the 2019-2020 contract year through the 2021-2022 contract year.

PKDC requests the Commission compel a response to Interrogatory 21 limited to the trade lanes covered by the relevant service contract and limited to contract years from 2019-2020 through 2021-2022. (Motion at 6.)

CMA argues that the information sought in Interrogatory 21 as revised is duplicative of Interrogatory 20 as revised, and argues that a response should not be compelled for this reason. (Opposition at 2.)

The undersigned finds that the information sought in Interrogatory 21 is duplicative of the information sought in Interrogatory 20, a response to which has been compelled subject to the conditions set forth above. An order compelling discovery of the duplicative request is not appropriate. Accordingly, the motion is **DENIED** with respect to Interrogatory No. 21.

RULING: The motion to compel Interrogatory No. 21 is DENIED.

Interrogatory No. 26

Interrogatory No. 26 Original Request and Response:

Complainant's Interrogatory No. 26. For all denied requests identified above, identify the breakdown of contract cargo, non-contract cargo, and cargo moving at spot market rates, on the vessel and the average ocean freight rate charged for each category.

Respondent's Response: CMA CGM objects to this interrogatory on the grounds that it is vague and ambiguous due to the lack of any definition of what constitutes non-contract cargo and the lack of clarity with respect to the difference, if any, between spot market rates and rates applicable to non-contract cargo. CMA CGM further objects to this interrogatory on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence in that rates vary by commodity and routing and an average ocean freight rate will have no probative value. CMA CGM further objects on the grounds that this request is unduly burdensome.

Interrogatory No. 26 Discussion and Final Positions:

After a meet and confer letter explaining the request seeks disclosure of rates for cargo moving under a service contract and cargo not moving under service contract, whether that is moving under spot market (such as CMA's SpotOn process) or other short-term rate and having a discussion on same, CMA responded:

There appears to have been a miscommunication with respect to this interrogatory. As explained, CMA CGM is unable to respond to this interrogatory unless PKDC first provides it with a list of the attempted bookings that it contends were wrongfully rejected by CMA CGM. In addition, a response would require manual investigation and identification of the rates applicable to each shipment on each sailing, which is burdensome. Moreover, the same problems that exist in responding to interrogatories 20 and 21 above exist with respect to this interrogatory.

Complainant thereafter responded:

In a final good faith effort to resolve this dispute, we propose providing the requested breakdown for all attempted bookings and rather than providing reasons, simply note which booking attempts did not result in PKDC cargo being carried.

PKDC requests the Commission compel a response to Interrogatory 26 limited to providing the requested breakdown for each attempted booking but only requiring a notation of which bookings did not result in cargo movement. (Motion at 7.)

CMA argues that the interrogatory is unduly burdensome in that it would first need to identify each sailing on which PKDC attempted to book cargo. It claims that it is literally impossible to do because in many cases PKDC moved cargo through NVOCCs, and, in such instances, CMA CGM would not know the owner of the cargo on whose behalf the NVOCC was attempting to book for transport. Then, for those bookings PKDC made or attempted to make directly, CMA CGM would need to identify the relevant sailing and conduct a manual review of other records in order to determine how much of the cargo carried on each sailing was moving under service contracts and how much was moving under tariff rates. This is extremely burdensome in that it requires a manual evaluation of records relating to many thousands of shipments. (Opposition at 5; Eouzan Aff., ¶ 7.)

CMA also argues that there is a less burdensome way for PKDC to obtain information similar to that requested. CMA states that it is producing, in response to other discovery requests, certain business records that reflect on a weekly basis the volume of contract and non-contract cargo transported by CMA. While these records cover the inbound trade overall and are not specific as to individual sailings, CMA submits they provide a reasonable proxy for the information sought in light of the burden of responding to the Interrogatory as revised. (Opposition at 5.)

The undersigned agrees with CMA that the original interrogatory is vague and ambiguous due to the lack of definitions of the terms contract cargo, non-contract cargo, and cargo moving at spot market rates. Additionally, CMA has established that responding is burdensome in that it requires the manual evaluation of many thousands of shipments. (Opposition at 5; Eouzan Aff., ¶ 7.) At the same time, the undersigned finds that the information as defined under the definition of terms subsequently provided by PKDC could lead to the discovery of admissible evidence given that PKDC asserts a claim under § 41102(c) and seeks to determine CMA's practices with respect to space allocation.

For this reason, the interrogatory as originally drafted is unduly burdensome because the relevance of the information sought is not proportional to the needs of the case absent the imposition of conditions to the scope of the request. Accordingly, the motion to compel Interrogatory No. 26 is **GRANTED IN PART and DENIED IN PART** subject to the following conditions. PKDC is directed within 10 days of the date of this order to provide CMA with a list of bookings it unsuccessfully attempted to make with CMA during the service contract year 2021 to 2022. If PKDC satisfies the requirement that it timely provide a list of attempted bookings within 10 days of the date of this order, then CMA is directed to respond to Interrogatory No. 26 subject to the condition that it respond by making a notation as to which of the attempted bookings did not result in PKDC cargo being carried, and to the extent it is able to do so why each booking was rejected. Otherwise, including if PKDC does not timely provide CMA with a list of attempting bookings, the motion to compel is **DENIED** with respect to Interrogatory No.26.

RULING: The motion to compel Interrogatory No. 26 is GRANTED IN PART and DENIED IN PART as specified herein.

B. DOCUMENT REQUESTS

Request No. 21

Document Request No. 21 Original Request and Response:

Complainant's Request 21. Documents sufficient to show the prices charged for transportation by You of cargo pursuant to any Service Contract with any Shipper on each vessel on which PKDC or any other person booked or attempted to book transportation by You of PKDC Cargo, or provided You notice of PKDC's space requirements for any shipment tendered or to be tendered under the SC.

Respondent's Response: CMA objects to this request on the grounds that any response requires the provision of the confidential contract rates of other customers to PKDC. CMA further objects on the grounds that this request is overly broad and unduly burdensome. CMA further objects to this request on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence.

Document Request No. 21 Discussions and Final Positions:

After a meet and confer letter and discussions, Complainant tried to address Respondent's objections as follows:

CMA has suggested that there may be an issue determining the ships where PKDC requested but was denied space. We would agree to amend this request to seek the information for all ships on the lanes and time period covered by the relevant service contract.

Respondent replied:

The potential resolution does not fully reflect or adequately address CMA CGM's objections to this request. As noted above, CMA CGM cannot identify those sailings on which an attempted booking of PKDC cargo was rejected. Even if PKDC were to provide documents enabling CMA CGM to identify all of the relevant sailings, a response to this request would require CMA CGM to produce every service contract, bill of lading and invoice for every container transported on each of those sailings.

In a final attempt to address these concerns Complainant responded:

In a final good faith effort to resolve this dispute, we further propose providing the requested breakdown for CMA's capacity for all sailings with attempted bookings and limited to invoices.

PKDC requests the Commission compel a response to Production Request 21 limited to sailings related to PKDC requests, CMA's own capacity and further limited to invoices. (Motion at 8.)

PKDC argues that its request is supported by Judge Wirth's order granting motion to compel in *MCS Industries v. COSCO Shipping, Co. Ltd. And MSC Mediterranean Shipping Company, S.A.*, No. 21-05, 2021 WL 5908366 (ALJ December 8, 2021.) (Motion at 11.)

CMA argues that PKDC seeks invoice issued to other customers, which consists of commercially sensitive information. It distinguishes the order on motion to compel in *MCS Industries* relied on by PKDC on the ground that the complaint in that case included a claim for discrimination in violation of § 41104(a)(9). *Id.* at *9. Although CMA concedes that pricing information would be relevant to a claim under § 41104(a)(9), it notes that there is no longer a claim for discrimination under that section in this case because that count was dismissed. (Opposition at 6.) It alleges that the pricing information of other customers is not relevant to the remaining claims involving unreasonable practices by systematically refusing to meet its service contract commitments, coercing extracontractual payments, and assessing charges in violation of the incentive principle applicable pursuant to § 41102(c); failing to meet its commitments in its service contract in violation of § 41104(a)(2); and unreasonable refusal to deal in violation of § 41104(a)(10). (Complaint ¶¶ 55, 57, 59, 63; Opposition at 6-8.) It also argues that the production of commercially sensitive pricing information with respect to non-party customers has been denied where the burden and expense of production outweigh the probative value of the information, citing *OJ Commerce LLC v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co KG*, No. 21-11, 2022 WL 2399910, at *3 (ALJ June 29, 2022.) CMA argues that in light of the lack of value of the requested pricing information, the motion to compel should be denied.

PKDC's claim asserting discriminatory practices in violation of § 41104(a)(9) was dismissed on December 20, 2024. (Dkt. 15.) The undersigned finds that the commercially sensitive pricing information sought in Request No. 21 is not relevant to the remaining claims. In addition, its production would be unduly burdensome to CMA given the number of shipments at issue during the relevant time frame. (*Eouzan Aff.*, ¶¶ 4-5.) For this reason, the request is unduly burdensome in light of the fact that the relevance of the information sought and is not proportional to the needs of the case. Accordingly, the motion to compel is **DENIED** with respect to Request No. 21.

RULING: The motion to compel Request No. 21 is DENIED.

Request No. 22

Document Request No. 22 Original Request and Response:

Complainant's Request 22. Documents sufficient to show the prices charged for transportation by You of cargo not pursuant to any Service Contract with any Shipper on each vessel on which PKDC or any other person booked or attempted to book transportation by You of PKDC Cargo, or provided You notice of PKDC's space requirements for any shipment tendered or to be tendered under the SC.

Respondent's Response: CMA objects on the grounds that this request is overly broad and unduly burdensome. CMA further objects to this request on the grounds that it is not reasonably calculated to lead to the discovery of admissible evidence.

Document Request No. 22 Discussion and Final Positions:

After a meet and confer letter and discussions, Complainant tried to address Respondent's objections as follows:

CMA has suggested that there may be an issue determining the ships where PKDC requested but was denied space. We would agree to amend this request to seek the information for all ships on the lanes and time period covered by the relevant service contract.

Respondent replied:

The potential resolution does not fully reflect or adequately address CMA CGM's objections to this request. As noted above, CMA CGM cannot identify those sailings on which an attempted booking of PKDC cargo was rejected. Even if PKDC were to provide documents enabling CMA CGM to identify all of the relevant sailings, a response to this request would require CMA CGM to produce every tariff entry, bill of lading and invoice for every container transported on each of those sailings.

To address these concerns Complainant responded:

In a final good faith effort to resolve this dispute, we further propose providing the requested breakdown for CMA's capacity for all sailings with attempted bookings and limited to invoices.

PKDC requests the Commission compel a response to Production Request 22 limited to sailings related to PKDC requests, CMA's own capacity and further limited to invoices. (Motion at 9.)

CMA argues that PKDC seeks invoice issued to other customers, which consists of commercially sensitive information. It distinguishes the *MCS Industries* order relied on by PKDC on the ground that the complaint in that case included a claim for discrimination in violation of § 41104(a)(9). *Id.* at *9. Although PKDC admits that the pricing information would be relevant to a claim under § 41104(a)(9), it notes that there is no longer a claim for discrimination in this case because that count was dismissed. (Opposition at 6.) It alleges that the pricing information of other customers is not relevant to the remaining claims involving unreasonable practices by systematically refusing to meet its service contract commitments, coercing extracontractual payments, and assessing charges in violation of the incentive principle in violation of § 41102(c); failing to meet its commitments in its service contract in violation of § 41104(a)(2); and unreasonable refusal to deal in violation of § 41104(a)(10). (Complaint ¶¶ 55, 57, 59, 63; Opposition at 6-8.) It also argues that the production of commercially sensitive pricing information with respect to non-party customers has been denied where the burden and expense of production outweigh the probative value of the information, citing *OJ Commerce LLC, v. Hamburg Sudamerikanische Dampfschiffahrts-Gesellschaft A/S & Co KG*, No. 21-11, 2022 WL 2399910, at *3 (ALJ June 29, 2022.) CMA argues that in light of the lack of value of the requested pricing information, the motion to compel should be denied.

PKDC's claim asserting discriminatory practices in violation of § 41104(a)(9) was dismissed on December 20, 2024. (Dkt. 15.) The undersigned finds that the commercially sensitive pricing information is not relevant to the remaining claims. Pricing information is not relevant to: 1) a determination pursuant to 46 U.S.C. § 41102(c) as to whether or not CMA failed to establish, observe, and enforce just and reasonable regulations and practices related to or connected with receiving, handling, storing or delivering property; 2) a determination pursuant to § 41104(a)(2) as to whether CMA unreasonably failed to meet its commitments in its service contract; or 3) a determination pursuant to § 41104(a)(10) as to whether CMA unreasonably failed to deal or negotiate. Although pricing information may be relevant to an inquiry pursuant to § 41104(a)(9), that claim was dismissed in this case rendering the *OJ Commerce* decision inapposite because § 41104(a)(9) was at issue in that case. In addition, the production of pricing information would be unduly burdensome to CMA given the number of shipments at issue during the relevant time frame. (Eouzan Aff., ¶¶ 4-5.) For this reason, the request is unduly burdensome in light of the relevance of the information sought and is not proportional to the needs of the case. Accordingly, the motion to compel is **DENIED** with respect to Request No. 22.

RULING: The motion to compel Request No. 22 is DENIED.

Request No. 44

Document Request No. 44 Original Request and Response:

Complainant's Request 44. All documents concerning CMA internal discussions concerning rejected cargo related to PKDC or any service contract.

Respondent's Response: CMA objects to this request to the extent it covers a time period beyond the duration of the SC. CMA further objects on the grounds that this request is vague and ambiguous. CMA further objects to this request on the grounds that it is overly broad and unduly burdensome in that it would require production of every document relating to any rejection of any service contract cargo of any customer anywhere in the world at any time.

Document Request No. 44 Final Positions:

After a meet and confer letter and discussions, Complainant tried to address Respondent's objections as follows:

CMA requests that we further restrict this request as to time. As previously stated, we would agree to limit to the 2019-2020 contract year through the 2022-2023 contract year.

Respondent responded:

Taken literally, this request would require CMA CGM to produce every document discussing any rejection of any cargo under any service contract with no temporal or geographic restrictions. Such a request is overly broad and burdensome. CMA CGM requests that this request be limited to the term of the SC, to the trade lanes

covered by the SC, and to PKDC itself. CMA CGM is prepared to produce documents responsive to the request as CMA CGM has proposed revising it. CMA requests that PKDC limit this request as CMA CGM has proposed, at least initially. Should PKDC believe, after reviewing responsive documents, that documents relating to any rejection of cargo of other persons is necessary, CMA CGM proposes that the parties consult at that point and agree on some method of sampling that would reduce the scope of this request to make it manageable for both parties.

To address these concerns Complainant responded:

CMA's proposal is unacceptable. In a final good faith attempt to resolve, we would agree to limiting this request to the contract year and trade lanes, however, not limited to PKDC. Further this agreement is without prejudice to revisiting after review.

PKDC requests the Commission compel a response to Production Request 44 limited to the relevant contract year and trade lanes but not limited to Complainant. We note that by seeking a more limited production at this time, we do not waive our rights to seek further discovery on this topic. (Motion at 10.)

CMA argues that this request is overly broad and unduly burdensome. It states that bookings of service contract cargo might be rejected for any number of reasons including but not limited to: the customer being in arrears in payments, the booking being for a commodity or routing not covered by the customer's contract, the customer or its agent providing incomplete or incorrect information (such as the wrong contract number), or the customer having utilized its full allocation on a particular sailing prior to the attempted booking. (Opposition at 8, Eouzan Aff., ¶ 8.) In order to respond, CMA argues that it would have to conduct a search of the electronic mailboxes of virtually every CMA employee involved in the trans-Pacific trade during the time period in question, including employees in France, the United States, and each Asian origin country that was covered by the service contract between the parties. This is a task that would require review of literally millions of email messages. (Opposition at 8, Eouzan Aff., ¶ 9.) It further argues that production of messages relating to the rejection of specific contract bookings would not be relevant in light of the multitude of reasons a booking might be rejected. In addition, discussions about different contract customers would have no bearing on PKDC's claims. More specifically, PKDC's claims relate to its contract, negotiated and managed by specific CMA CGM employees, and the contract includes very precise origins and destinations as well as allocations that were influenced by PKDC's own correspondence with CMA CGM. CMA argues that no other customer would have identical service contract terms, shipping lanes, points of contact, allocations, and communications with CMA CGM. As such, this request cannot be considered relevant or likely to result in the discovery of relevant information as stated and should be rejected. (Opposition at 8-9.)

The undersigned finds that the information sought could lead to the discovery of admissible evidence given that PKDC asserts claims under §§ 41102(c) and 41104(a)(2) alleging that CMA systematically refused to meet its commitment, coerced extracontractual payments, and failed to establish, observe, and enforce just and reasonable practices with respect to PKDC's property. (Complaint ¶¶ 55, 57, 59.) It also could lead to the discovery of admissible evidence given the PKDC asserts a claim of unreasonable refusal to deal under § 41104(a)(10). (Complaint ¶ 63.)

At the same time, CMA persuasively argues that the request is burdensome given the number of documents that need to be manually reviewed, which assertion is well supported by the Declaration of Pierre-Edouard Eouzan. For this reason, the request as originally drafted is unduly burdensome because the relevance of the information sought is not proportional to the needs of the case absent a limitation to the scope of the request. Accordingly, the motion is **GRANTED IN PART and DENIED IN PART** with respect to Request No. 44 subject to the following condition. CMA is directed to respond the request limited to the contract year, trade lanes, and PKDC.

RULING: The motion to compel Request No. 44 is GRANTED IN PART and DENIED IN PART.

IV. Order

For the reasons set forth above, the motion is **GRANTED IN PART and DENIED IN PART** subject to the conditions specified herein.

Mary A. Hervey -^S
Digitally signed by Mary A. Hervey -
Date: 2025.06.09 12:08:06 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge